

Present:

Mr. Justice S M Kuddus Zaman

CIVIL RULE NO.76(FM) of 2024.

Quantum Power Systems Limited and
others

... Petitioners

-Versus-

Bangladesh Bank and others

...opposite parties

No one appears

... For the petitioner

Mr. Muhammad Anisuzzaman, Advocate

...For the opposite party No.3-4

Mr. Md. Imran Ali, Advocate

...For the opposite party No.09

Mr. Syed Mehedi Hasan, Advocate

...For the opposite party No.15

Mr. Minhazul Hoque Chowdhury, Advocate

...For the opposite party No.14

Mr. Fahad Mahmood Khan, Advocate

...For the opposite party No.18

Heard & Judgment on: 05.09.2024.

This Rule was issued calling upon the respondent-opposite parties to show cause as to why they should not be restrained by an order of injunction from continued adverse inclusion, circulation and publication of classification status of the plaintiff-petitioner and its directors in the report to the Credit Information Bureau (CIB) of Bangladesh Bank as loan defaulter and also classifying them as defaulter borrower in connection

with the loan facilities provided by the respondent-opposite party Nos.3-18 be set aside till disposal of First Misc. Appeal Tender No.28 of 2024 and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the petitioners as plaintiffs instituted Title Suit No.20 of 2024 against 18 Banking and Financial companies namely, AB Bank Limited, Eastern Bank Limited, Janata Bank Limited, Standard Bank Limited, Premier Bank Limited, United Finance Compnay Limited, Shahjalal Islami Bank Limited, Dutch-Bangla Bank Limited, Saudi-Bangladesh Industrial and Agricultural Investment Company Limited, Mutual Trust Bank Limited, Brac Bank Limited, One Bank Limited, Mercantile Bank Limited, IFIC Bank Limited, Infrastructure Development Compnay Limited and the Bangladesh Bank for a decree for declaration that classifying the loan accounts of the plaintiffs and designating the plaintiffs as a loan defaulters and sending their names to the Bangladesh Bank for publication in the CIB report were illegal and unlawful.

In above suit the plaintiffs filed a petition on 05.02.2024 under order 39 Rule 1 of the Code of

Civil Procedure, 1908 for an order of ad interim injunction against above defendants so that they cannot classify the plaintiffs as defaulters in paying loan and send their names to the Bangladesh Bank for publication in the CIB report.

On consideration of submissions of the learned Advocates for the plaintiffs and materials on record the learned Joint District Judge rejected above petition.

Being aggrieved by and dissatisfied with above judgment and order the plaintiffs as appellants preferred First Misc. Appeal Tender No.28 of 2024 and obtained this rule and an ad-interim order of injunction

No one appears on behalf of the appellants at the time of hearing of this rule.

Mr. Muhammad Anisuzzaman along with Mr. Md. Imran Ali along with Mr. Syed Mehedi Hasan along with Mr. Minhazul Hoque Chowdhury along with Mr. Fahad Mahmood Khan learned Advocates for the respondents No.3-4, 9, 14, 15 and 18 submit that the order of injunction as well as above Title Suit No.295 of 2024 are barred by Article 41 (1) of the Bangladesh Bank Order 1972.

I have considered the submissions of the learned Advocates for the respondents and carefully examined all materials on record.

Undisputedly the plaintiffs obtained loan of a huge amount of money from 18 separate banks and Financial companies namely, AB Bank Limited, Eastern Bank Limited, Janata Bank Limited, Standard Bank Limited, Premier Bank Limited, United Finance Compnay Limited, Shahjalal Islami Bank Limited, Dutch-Bangla Bank Limited, Saudi-Bangladesh Industrial and Agricultural Investment Company Limited, Mutual Trust Bank Limited, Brac Bank Limited, One Bank Limited, Mercantile Bank Limited, IFIC Bank Limited, Infrastructure Development Company Limited.

Above syndicated loan was approved and disbursed pursuant to a single loan agreements between the plaintiffs and opposite specifying the terms and conditions as to the mode of disbursement of the loan money, schedule of repayment of above loans and all other related issues.

If a loan receiver fails to repay the loan according to the payment schedule agreed upon by the parties in the loan agreement he is designated as a defaulter in paying the loan. The relation between

the parties to this suit and the dispute are contractual in nature arising out of a loan agreement. In a case involving contractual disputes an order of temporary injunction is not a just, equitable and appropriate remedy.

In this application under Order 39 rule 1 of the Code of Civil Procedure the petitioners in fact sought the remedy of the original suit without proving their claims or status by legal evidence at trial.

As far as the publication of the CIB report by the Bangladesh Bank is concerned above jurisdiction of the Bangladesh Bank has been provided by Article 41(1) of the Bangladesh Bank Order 1972. Above Article of the Bangladesh Bank Order has explicitly barred the jurisdiction of a civil court from entertaining any suit or case challenging any action of the Bangladesh Bank initiated under Article 41(1) of the above Order.

In above view of Article 41 of the Bangladesh Bank Order, 1972 and materials on record I hold that the plaintiffs petition under Order 39 Rule 1 of the Code of Civil Procedure for an order of injunction against the opposite parties restraining them from classifying the petitioners as loan defaulters and

sending their loan status to the Bangladesh bank for publication in the CIB report is barred by Article 41(1) of the Bangladesh Bank Order 1972.

The learned Joint District Judge on correct appreciation of facts and circumstances of the case and relevant laws rightly rejected above petition which calls for no interference.

In above view of materials on record I am unable to find any substances in this First Miscellaneous Appeal and the rule issued in this connection is liable to be discharged.

In the result, the rule is discharged.

The ad-interim order passed at the time of issuance of the rule is hereby vacated.

Let a copy of this judgment be transmitted down at once.